

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS
STATE OF COLORADO

Case No. 2024-4574

CEASE AND DESIST ORDER

IN THE MATTER OF THE UNLICENSED PRACTICE OF PROFESSIONAL COUNSELING BY PAUL
EDMUND GUTIERREZ JR.

Respondent.

To:

PAUL EDMUND GUTIERREZ JR.

[REDACTED]
[REDACTED]
[REDACTED]

The State Board of Licensed Professional Counselor Examiners (the “Board”), having reviewed all available information in this matter hereby **ORDERS PAUL EDMUND GUTIERREZ JR. (“Respondent”) TO CEASE AND DESIST THE UNLICENSED PRACTICE OF PROFESSIONAL COUNSELING.**

The Board HEREBY FINDS:

1. The Board has jurisdiction over Respondent and the subject matter herein, and there exists credible evidence that Respondent has acted without the required license to practice professional counseling, in violation of Section 12-245-228, C.R.S., which states:

Any person who practices or offers or attempts to practice as a psychologist, social worker, marriage and family therapist, licensed professional counselor, psychotherapist, or addiction counselor without an active license, registration, or certification issued under this article 245 is subject to penalties pursuant to section 12-20-407(1)(a).

2. Respondent’s license to practice professional counseling was revoked on May 3, 2024, and Respondent does not currently hold a valid license to practice professional counseling or psychotherapy in the State of Colorado, as required by section 12-245-604, C.R.S.

3. Respondent is not exempt from the licensing requirements of Article 245, Title 12, C.R.S.

4. The Board of Licensed Professional Counselor Examiners reviewed an investigation from the Office of Investigations that demonstrated Respondent engaged in the unlicensed practice of professional counseling when Respondent held himself out as providing the therapeutic modality of eye movement desensitization and reprocessing ("EMDR").

5. Respondent's actions as set forth in paragraph 4, constitute the practice of professional counseling as defined in section 12-245-603, C.R.S.,

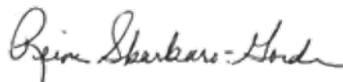
7. Based on the above, Respondent is practicing professional counseling as defined in sections 12-245-603, C.R.S. without the required license.

9. Respondent's conduct constitutes the unlicensed practice of professional counseling in violation of section 12-245-228, C.R.S.

THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS HEREBY ORDERS, pursuant to sections 12-245-225(3) and 12-20-405, C.R.S., that Respondent immediately **CEASE AND DESIST** the practice of professional counseling in violation of section 12-245-228, C.R.S.

The foregoing **CEASE AND DESIST ORDER** is effective this 21st day of November, 2024.

FOR THE STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS

BY: 

Reina Sbarbaro-Gordon
Program Director
1560 Broadway, Suite 1350
Denver, CO 80202

Within ten days after service of this Cease and Desist Order, pursuant to section 12-20-405(1)(b), C.R.S., Respondent may request a hearing on the question of whether such acts or practices are in violation of Article 245, of Title 12, C.R.S., have occurred.